

The Role of Case Management in Low-level Prosecution

New Evidence from Philadelphia's Municipal Courts¹

Summary

The vast majority of criminal cases in the U.S. are handled not in high-profile felony trials but in the lower courts, where prosecutors manage a relentless volume of low-level offenses. These frontline decisions shape case outcomes for millions of defendants each year, yet we know surprisingly little about how these prosecutors work—limiting our ability to understand or reform the justice system. Drawing on ethnographic fieldwork and ten years of hearing-level data from the Philadelphia District Attorney's Office, new research shows that prosecutors primarily function as case managers: they coordinate witnesses, share discovery documents, and keep cases moving. Some prosecutors are better at these case management tasks than others, and this skill predicts whether a case ends in a conviction. But there's a catch: defendants are more likely to be rearrested and re-charged when their prosecutor is better at securing convictions. In other words, prosecutors who perform well by office standards may actually produce worse long-term outcomes for defendants—and potentially for public safety.

Prosecutors who are better case managers are more likely to secure convictions, but these prosecutors also have higher rearrest rates for defendants on their caseload.

Methods

These studies use a combination of qualitative and quantitative methods. The first paper uses ethnographic fieldwork and interviews with prosecutors to understand how they spend their time on a daily basis. The second paper uses internal data from the Philadelphia District Attorney's Office on 66,000 misdemeanor lead charge cases from January 2011 to March 2020. We identify individual prosecutors at each hearing and use statistical benchmarking to compare outcomes for prosecutors handling similar cases. By analyzing prosecutors' granular, hearing-level actions, these studies examine the practical drivers of case outcomes.

Key Findings

- 1. Prosecutors vary in their case management skills.** Prosecutors in the Municipal Courts primarily function as case managers, coordinating witnesses and handling discovery. Even when faced with similar caseloads, line prosecutors differ in their success at key case management tasks. These tasks are essential for a case to proceed to resolution.
- 2. Prosecutors with strong case management skills secure more convictions.** The procedural administrative tasks of paperwork and witness management are first-order determinants of case outcomes. Prosecutors who are more effective case managers are significantly more likely to have their cases end in conviction and formal punishments (e.g., incarceration or probation).
- 3. "Good office work" may lead to worse defendant outcomes.** Prosecutors with better case management skills and higher conviction rates also have higher rates of defendants being rearrested or recharged within two years—suggesting that administrative efficiency may come at the cost of long-term public safety. These new arrests could stem from two mechanisms: on the one hand, individuals with convictions may face greater barriers to employment, housing, and stability, increasing the likelihood of reoffending; on the other hand, the "mark" of a conviction may bias future decision-making by police, prosecutors, or judges, making defendants more likely to be rearrested or recharged for similar conduct that might otherwise have been overlooked.

¹ This white paper summarizes research from two related papers: [Prosecutors as Case Managers](#), by Lindsay Graef, and [The Role of Case Management in Misdemeanor Prosecution](#), by Lindsay Graef and Aurélie Ouss. For further information, contact Lindsay Graef lgraef@law.upenn.edu or Aurélie Ouss aouss@sas.upenn.edu. This work is supported by Arnold Ventures, a philanthropy dedicated to tackling some of the most pressing problems in the United States.

“Most of the time, I’m not arguing about the merits of the case, but whether we gave someone a piece of paper.”

“I feel like I’m just an administrator almost, just pushing stuff around”

“You’re trying to do something to increase the odds of that case going next time. Because the whole thing is just a numbers game... the odds go down as the number of listings go up because complaining witnesses get tired and cops’ memories get fuzzy, and then the holidays come around and everyone’s on vacation.”

Policy Implications

The case management model of prosecution has important implications for public policy, including the recruitment and training of new prosecutors, the selection of cases into the court system, and the design of effective prosecutor-led reforms.

- **Redefine success and address systemic momentum.** Conventional metrics of prosecutor success (like convictions) may be counterproductive and undermine public safety. Meanwhile, the outcomes that matter most for defendants and victims, like reduced recidivism or stability after case resolution, are rarely visible to line prosecutors. Offices should develop tangible success metrics that reflect broader justice goals, such as minimizing future system involvement or improving victim engagement. Policy reforms must also consider the pressures new prosecutors face, such as the expectation to gain trial experience and not challenge prior colleagues’ decisions.
- **Align prosecutor roles and training with effective case management—by both strengthening and redistributing those responsibilities.** Ensure prosecutors have the tools, staff support, and time needed to manage witnesses and discovery fairly and effectively, without defaulting to punitive resolutions.

Strategies could include:

- + Hiring and training reforms, such as screening for case management skills during recruitment, and expanding on-the-job training to include strategies for managing witnesses and victims
 - + Partnerships with local law schools to incorporate case management training into their curricula, ensuring that new prosecutors enter the field with practical experience
 - + Reducing administrative burdens on prosecutors by re-evaluating the roles of paralegals and victim services coordinators to ensure they meaningfully support case management
 - + Exploring alternative prosecution models, such as within-unit vertical prosecution to minimize case management turnover or a team-based model where administrative tasks are delegated to specialized staff, similar to job restructuring seen in other fields
- **At the same time, reduce the flow of low-level cases into the court system.** This would allow prosecutors to focus case management on cases where legal intervention is most needed. Offices should consider alternatives to misdemeanor prosecution: can more cases be declined at charging? Can we expand diversion for more serious misdemeanor cases? To support this caseload pruning, offices must also reassess the use of misdemeanor cases as training for new prosecutors, particularly given the collateral consequences for defendants.

In all, these findings challenge current ideas of prosecutorial discretion and offer a new direction for reform—one that focuses on how we structure, support, and evaluate the everyday work of prosecutors in the courts where most justice system contact actually happens.